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11/12/2021 4:55:00 PM $40.00
Book - 11268 Pg - 4414-4417
RASHELLE HOBBS
Recorder, Salt Lake County, UT
OLD REPUBLIC TITLE DRAPER/OREM
BY: eCASH, DEPUTY - EF 4 P.

When recorded, send notice to:
P.G.L.C., LLC
2025 Mahre Drive
Park City, Utah 84098

ORT File 2051144HM
Tax ID: 17-09-376-001

Supplemental Declaration and Notice of Vested Mining Use[1]

Utah Code § 17-41-501 to -503 (2021)

THIS SUPPLEMENTAL DECLARATION AND NOTICE OF VESTED MINING USE (**"Supplemental Declaration"**) is made pursuant to Paragraph L of that certain Declaration and Notice of Vested Mining Use dated November 19, 2019 and recorded in the official records of the Salt Lake County Recorder as Entry No. 13131633, Book 10864, Pages 630 to 639 (the "**2019 Declaration**") by the undersigned as successor in interest to P.G.L.C., LLC, a mine operator under Utah law (the term "mine operator" includes any natural person, corporation, association, partnership, receiver, trustee, executor, administrator, guardian, fiduciary, agent, or other organization or representative, either public or private, including a successor, assign, subsidiary, related parent company, and predecessor in interest) (**"Declarant"**). This Declaration incorporates the 2019 Declaration by this reference and further adds to the 2019 Declaration the real property legally described on Exhibit A attached hereto and incorporated herein by this reference (the **"Parcel"**).

As a successor in interest to P.G.L.C., LLC, Declarant is considered a "mine operator" under Utah law. The purpose of this Declaration is to make clear that the Parcel as defined in this Supplemental Declaration is part of the Property as defined in the 2019 Declaration.

The vested mining use declared hereunder shall run with and bind the land within the Property as provided by Utah Code § 17-41-501(2), subject only to express abandonment by written declaration according to Utah Code § 17-41-503.

Dated this 12th day of November, 20~~20~~21.

[SIGNATURES ON FOLLOWING PAGE]

[1] The purpose of this Supplemental Declaration is made pursuant to Paragraph L of that certain Declaration of Vested Mining Use recorded as Entry No. 13131633 in the official records of Salt Lake County on November 22, 2019 at Book 10864, Pages 630 to 639 to make clear that Mt. Aire 132, LLC now owns or controls the Property described on Exhibit A and holds a vested mining use pursuant to the 2021 version of the vested mining use statute, which is codified at Utah Code § 17-41-501 to -503 (2021).

DECLARANT

Mt. Aire 132, LLC

Jesse R. Lassley

By: Jesse R. Lassley
Its: Manager

STATE OF UTAH)
: ss.
COUNTY OF Salt Lake)

On the 12 day of November, 2020, Jesse R. Lassley appeared before me who duly acknowledged and executed the above instrument in the capacity so stated.

Cynthia B. Allen

Notary Public

(seal)

Notary Public - State of Utah
CYNTHIA B. ALLEN
Comm. #714253
My Commission Expires
October 25, 2024

EXHIBIT A
to Declaration of Vested Mining Use

The "Parcel" referred to in the foregoing instrument is located in Salt Lake County, Utah, and is more particularly described as follows:

From Entry No. 12990210:

The following parcels of land as shown and described in that certain Proposed Boundary Survey prepared by Focus Engineering and Surveying, LLC, having been certified under the date of April 30, 2019, as Job No. 18-339, by Spencer W. Llewelyn, a Professional Land Surveyor holding Certificate No. 10516507 and being more particularly described as follows:

East Parcel

A portion of the SE1/4 of Section 8, the SW1/4 of Section 9 and the NE1/4 of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, more particularly described as follows:

Beginning at a point on the Northerly Right-of-Way line of Interstate 80 located S86°57'17"E along the Section line 1,322.31 feet and N00°12'13"W along the 1/16th (40 acre) line 931.99 feet from the Southwest Corner of Section 9, T1S, R2E, SLB&M; thence N00°12'13"W along the 1/16th (40 acre) line 379.41 feet; thence S86°59'12"E along the 1/16th (40 acre) line 926.12 feet to the Northerly Right-of-Way line of Interstate 80; thence along said right-of-way the following 4 (four) courses and distances: 1) Southwesterly along the arc of a non-tangent curve to the right having a radius of 3,688.27 feet (radius bears: N40°11'58"W) a distance of 79.50 feet through a central angle of 01°14'06" Chord: S50°25'05"W 79.49 feet; 2) along the arc of a curve to the right having a radius of 1,282.39 feet a distance of 548.31 feet through a central angle of 24°29'52" Chord: S65°10'59"W 544.14 feet; 3) along the arc of a curve to the right having a radius of 3,688.27 feet a distance of 285.86 feet through a central angle of 04°26'27" Chord: S81°33'10"W 285.79 feet; 4) S83°32'04"W 86.19 feet to the point of beginning.

Together with an easement and right of way as granted in that certain Grant of Easement and Right of Way recorded January 8, 2016, as Entry No. 12202539, in Book 10394, at Page 2281 of Official Records.

Composite Parcel

A portion of the SE1/4 of Section 8 and the SW1/4 of Section 9, Township 1 South, Range 2 East, more particularly described as follows:

Beginning at the Southwest corner of Section 9, T1S, R2E, SLB&M; thence N89°41'59"W along the Section line 209.31 feet to the Highway Right-of-Way line of Interstate 80; thence along said right-of-way line the following 12 (twelve) courses: N31°07'22"E 23.94 feet; thence N63°03'29"E 249.83 feet; thence S83°38'20"E 249.92 feet; thence N77°00'13"E 112.55 feet; thence N52°47'16"E 160.14 feet; thence N04° 23'21"W 225.86 feet; thence N77°49'22"E 120.47 feet; thence N83°32'01"E 905.12 feet; thence N87° 54'16"E 243.45 feet; thence N70°43'32"E 708.01 feet; thence N54°29'31"E 136.03 feet; thence N33° 18'26"E 197.33 feet to the 1/4 Section line; thence S00°02'55"W along the 1/4 Section line 1,208.85 feet to the South 1/4 Corner of said Section 9; thence N86°57'17"W along the Section line 2,644.62 feet to the point of beginning.

Less and Excepting therefrom the following described parcel of land:

A portion of the SW1/4 of Section 9, Township 1 South, Range 2 East, more particularly described as follows:

Beginning at a point located S86°57'17"E along the Section line 1,825.02 feet from the Southwest Corner of Section 9, T1S, R2E, SLB&M; thence N75°42'55"E 94.69 feet; thence along the arc of a curve to the right having a radius of 210.00 feet a distance of 160.43 feet through a central angle of 43°46'20" Chord:

S82°23'54"E 156.56 feet; thence S60°30'44"E 35.41 feet to the Section line; thence N86°57'17"W along the Section line 278.17 feet to the point of beginning.

Together with Easement for Construction of a Road for Ingress and Egress and Utilities described as follows:

A portion of the SW1/4 of Section 9, Township 1 South, Range 2 East, more particularly described as follows:

Beginning at a point located S86°57'17"E along the Section line 1,825.02 feet from the Southwest Corner of Section 9, T1S, R2E, SLB&M; thence N75°42'55"E 94.69 feet; thence along the arc of a curve to the right having a radius of 210.00 feet a distance of 160.43 feet through a central angle of 43°46'20" Chord: S82°23'54"E 156.56 feet; thence S60°30'44"E 35.41 feet to the Section line; thence N86°57'17"W along the Section line 278.17 feet to the point of beginning.

The following is included for informational purposes only:
Salt Lake County Parcel No. 17-09-376-001